

The Registration Of Newspapers (Central) Rules, 1956

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Union of India - Act

The Registration Of Newspapers (Central) Rules, 1956

UNION OF INDIA

India

The Registration Of Newspapers (Central) Rules, 1956

Rule THE-REGISTRATION-OF-NEWSPAPERS-CENTRAL-RULES-1956 of 1956

Published on 22 June 1956

Commenced on 22 June 1956

[This is the version of this document from 22 June 1956.]

[Note: The original publication document is not available and this content could not be verified.]

The Registration Of Newspapers (Central) Rules, 1956

Published vide Notificaiton S.R.O. 1519, dated 22.6.1956.

In exercise of the powers conferred by section 20-A of the Press and Registration of Books Act, 1867 (25 of 1867), the Central Government hereby makes the following rules, namely:- 19/873

1.

Short title and commencement

(1)

These rules may be called The Registration of Newspaper (Central) Rules, 1956.

(2)

They shall come into force on the 1st day of July, 1956.

2.

Definitions

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Press and Registration of Books Act, 1867;

(b)

"Form" means a Form specified in the Schedule to these rules;

(c)

"publisher" means the publisher of a newspaper.

3.

Form of declaration

.-Every declaration made under section 5 of the Act shall be in Form I and the person making the declaration shall give full and true particulars therein.

4.

[Transmission of copies of declaration, etc., to the person concerned and to the Press Registrar

[Substituted by G.S.R. 1222, dated 5.10.1960.]

.-A copy of every declaration attested by the Official Seal of a Magistrate and a copy of every order refusing to authenticate any declaration shall be sent by the Magistrate to the person making and subscribing the declaration and to the Press Registrar by registered post:

Provided that in the case of a person making and subscribing the declaration, any such copy may be delivered to him personally if he is present at the time when the attestation is made or, as the case may be, the order of refusal is passed.]

5.

Delivery of copies of newspaper to the Press Registrar

(1)

Every publisher shall, within 48 hours of the publication of an issue of his newspaper, send to the Press Registrar one copy of the issue by post or by a messenger:

Provided that where any newspaper publishers more than one edition under the same declaration and the retail selling price charged for, or the number of pages contained in, an issue of any such edition is different from an issue of any other edition, one copy of the issue of each such edition shall also in like manner be sent to the Press Registrar.

(2)

For the purposes of sub-rule (1)-

(a)

copies of the issues of newspapers published in Hindi, Urdu or English and of newspapers published in two languages, one of which is Hindi, Urdu or English, shall be sent to the Press Registrar in [Simla]

[Substituted by G.S.R. 1059, dated 29.8.1960.]

;

(b)

copies of the issues of newspapers published in any of the regional languages specified in column I below shall be sent to the Officer incharge of the Regional Office of the Press Information Bureau, Ministry of Information and Broadcasting, Government of India, at the place specified in the corresponding entry in column II and the officer shall take delivery of such newspaper on behalf of the Press Registrar:-

I

II

Punjabi

Jullundur

1[Bengali

[Substituted by S.R.O. 1971, dated 7.6.1957.]

[Calcutta

[Substituted by S.R.O. 1971, dated 7.6.1957.]

[Oriya

[Substituted by S.R.O. 1971, dated 7.6.1957.]

[Cuttack

[Substituted by S.R.O. 1971, dated 7.6.1957.]

[Assamese

[Substituted by S.R.O. 1971, dated 7.6.1957.]

[Gauhati]

[Substituted by S.R.O. 1971, dated 7.6.1957.]

2[Tamil

[Substituted by G.S.R. 1059, dated 29.8.1960.]

[Madras

[Substituted by G.S.R. 1059, dated 29.8.1960.]

[Telugu

[Substituted by G.S.R. 1059, dated 29.8.1960.]

[Hyderabad]

[Substituted by G.S.R. 1059, dated 29.8.1960.]

Malayalam

3[Trivandrum]

[Substituted by G.S.R. 721, dated 14.4.1970.]

Marathi

Bombay

Gujarati

4[Ahmedabad]

[Substituted by G.S.R. 723, dated 17.4.1963 (w.e.f. 1.5.1963).]

Kannada

Bangalore

5[Konkani]

[Added by G.S.R. 1809, dated 16.11.1963.]

[Bombay

[Portuguese

[Bombay]

6[Kashmiri

[Added by G.S.R. 1872, dated 13.12.1965.]

[Srinagar]

[Added by G.S.R. 1872, dated 13.12.1965.]

;

(c)

copies of the issues of newspapers published in any other language shall be sent to the Press Registrar in [Simla]

[Substituted by G.S.R. 1059, dated 29.8.1960.]

.

(d)

copies of the issues of newspapers published in any other language shall be sent to the Press Registrar in Simla.

6.

Annual statement

(1)

Every publisher shall, in respect of his newspaper or each of his newspapers, furnish to the Press Registrar on annual statement relating to each [financial year]

[Substituted by G.S.R. 241(E), dated 23.5.2002 (w.e.f. 1.4.2002).]

in Form II containing the particulars specified therein, so as to reach the Press Registrar on or before [the last day of May]

[Substituted by G.S.R. 241(E), dated 23.5.2002 (w.e.f. 1.4.2002).]

of the following year.

[Note .-The annual statement to be furnished by each publisher for the period from 1st January, 2002 to 31st March,

2002 has been waived off, in view of the amended cycle of the annual statement.]

[Substituted by G.S.R. 241(E), dated 23.5.2002 (w.e.f. 1.4.2002).]

(2)

Whenever there is a change in the retail selling price of a newspaper as furnished in any statement, the publisher shall, within 48 hours of such change, send intimation thereof to the Press Registrar.

7.

Maintenance of the Register

-(1) The Press Registrar shall maintain a Register of Newspapers in Form III.

(2)

The pages of the Register shall be numbered consecutively and entries in respect of a newspaper shall start from a fresh page. When particulars enumerated in Form I have been entered in the Register in respect of a newspaper, the Press Registrar shall allot a registration number to that newspaper. Initial entries in the Register and subsequent changes, if any, shall be duly authenticated under the signature of the Press Registrar.

(3)

The Press Registrar shall, in respect of every newspaper, cause relevant entries to be made in the Register and before making any entry therein, he may make such verification of the statements furnished to him by the newspaper as he may consider necessary.

8.

Particulars to be published in every newspaper

.- [(1)]

[Renumbered by G.S.R. 1222, dated 5.10.1960.]

The publisher shall publish in every issue of his newspaper the retail selling price of each copy, or, when there is no such selling price, shall publish in an appropriate place that it is for free distribution. The publisher shall also publish in the first issue after the last day of February of each year the particulars specified in Form IV.

(2)

[Every copy of every newspaper shall have printed legibly on it the names of the printer, publisher, owner and editor and the place of its printing and publication in the following form:

Printed by.....and published by.....on behalf of.....(name of owner).....and printed at.....(place of printing).....and published at.....(place of publication).....Editor.....

Note.-This form may be modified to suit the circumstances of each paper, for example, where the printer, publisher and owner are the same the imprint line can: Printed, published and owned by.....The editor's name, however, should be given separately in every case.]

[Inserted by G.S.R. 1222, dated 5.10.1960.]

9.

Furnishing of extracts from the Register

.-The Press Registrar shall, on an application made to him in writing and on payment of [a fee of five rupees]

[Substituted by G.S.R. 16, dated 4.2.1958.]

in respect of each newspaper, furnish to the applicant extracts from the Register duly certified by him.

10.

Certificate of registration

-(1) Where a publisher makes a declaration before a Magistrate, the Press Registrar shall, as soon as practicable, after receipt of the copy of the declaration, issue to the publisher a certificate of registration in Form V.

(2)

On receipt of information furnished by the publisher of a newspaper and upon allotting under rule 7(2) a registration number to that newspaper, the Press Registrar may also issue to the publisher a certificate of registration in Form V.

(3)

[Whenever there is any change in the particulars mentioned in the certificate of registration issued under sub-rule (1) or sub-rule (2), the publisher shall, as soon as may be, send intimation of such change to the Press Registrar and also return to him such certificate; and on receipt of such information and certificate, the Press Registrar shall cause the relevant entries to be made in the Register and re-issue the certificate with the changes.

(4)

The certificate of registration shall cease to be effective as soon as the declaration under which the newspaper is published becomes void or a newspaper is removed from the Register of Newspapers maintained by the Press Registrar.]

[Inserted by G.S.R. 16, dated 4.2.1958.]

11.

[Annual report

[Substituted by Notification No. 4/9/68 Co-ord/G.S.R. dated 7.10.1969.]

.-The Press Registrar shall submit to the Central Government on or before the]31st December]

[Substituted by G.S.R. 241(E) dated 23.5.2002 (w.e.f. 1.4.2002).]

[of each year, an annual report containing information and statistics about the Press in India, and in particular, circulation trends in different categories of newspapers and the trends in the direction of common ownership of more than one newspaper.]

[Substituted by Notification No. 4/9/68 Co-ord/G.S.R. dated 7.10.1969.]

12.

[Penalty

[Inserted by G.S.R. 304, dated 26.2.1966.]

.-A contravention of any of the provisions of these rules shall be punishable with fine which may extend to]one thousand rupees]

[Substituted by G.S.R. 241(E) dated 23.5.2002 (w.e.f. 1.4.2002).]

.]

Schedule

[FORM OF DECLARATION]

[Substituted by G.S.R. 16, dated 4-2-1958]

FORM I

(See Rule 3)

I _____ declare that I am the *printer or *publisher or *printer and publisher of the newspaper entitled _____ to be *printed at _____ and *published or to be *printed and published at _____ and that particulars in respect of the said newspaper given hereunder are true to the best of my knowledge and belief.

1. Title of the newspaper.

2. Language (s) in which it is (to be), published.

3. Periodicity of its publication.

(a)

Whether a daily, tri-weekly, bi-weekly, weekly fortnightly, or otherwise.

(b)

In the case of a daily, please state whether it is a morning or evening newspaper?

(c)

In the case of a newspaper other than a daily, please state the days(s)/date(s) on which it is (to be) published.

4. Retail selling price of the newspaper per copy.

(a)

If the newspaper is for free distribution, please state that it is 'for free distribution'.

(b)

If it has only an annual subscription and no retail price, please state the annual subscription.

5. Publisher's name.

Nationality.

(a)

Whether a citizen of India?

[Inserted by G.S.R. 823, dated 12.3.1969.]

(b)

If a foreigner, please state the country of origin.]

Address.

6. Place of publication (please give the complete postal address).

7. Printer's name.

Nationality.

(a)

[Whether a citizen of India ?

[Inserted by G.S.R. 823, dated 12.3.1969.]

(b)

If a foreigner, please state the country of origin.]

Address.

8. Name(s) of the printing press(es) where the newspaper is actually printed and the true and precise description of the premises on which the press (es) is/are installed.]

[Substituted by G.S.R. 1687, dated 17.10.1963]

9.

Editor's name.

Nationality.

(a)

Whether a citizen of India ?

[Inserted by G.S.R. 823, dated 12-3-1969]

(b)

If a foreigner, please state the country of origin.]

Address

10. Owner's name (s).

(a)

Please state the particulars of individual(s) or of the firm, Joint Stock Company, trust, co-operative society or association which owns the newspaper.

(b)

Please state whether the owner owns any other newspaper, and, if so, its name, periodicity, language and place of publication.

11. Please state whether the declaration is in respect of--

(a)

a new newspaper, or

(b)

an existing newspaper,

(c)

in case the declaration falls under item (b), the reason for filing the fresh declaration.

Date.....

Signature

Name (in block letters)

Designation.....

Strike out whatever is not applicable.

Note. - Separate declaration should be filed by the printer and the publisher, unless the printer and the publisher is the same person.

FORM II

[See Rule 6(1)]

[ANNUAL STATEMENT IN RESPECT OF THE NEWSPAPER ENTITLED FOR THE PERIOD ENDING 31ST MARCH, 20.....]

[Substituted by G.S.R. 241(E), dated 23-5-2002 (w.e.f. 1-4-2002).]

Serial No.

Items

Details of particulars

Particulars of changes, if any, during the year with date(s) of changes

Remarks

1
2
3
4
5

'A'- GENERAL

1.

Declaration under which the newspaper is published.

2.

Registration number of the newspaper

3.

Title of the newspaper

4.

Language (s) in which the newspaper is published

5.

Periodicity of its publication:

(a) whether a daily, tri-weekly, bi-weekly, weekly, fortnightly or otherwise .

(b) in the case of a daily, please state whether it is a morning or evening newspaper

(c) in the case of newspaper other than a daily, please state the day(s)/date(s) on which it is published.

6.

Publisher's Name

Nationality

1[(a) Whether a citizen of India?

(b) If a foreigner, please state the country of origin]

Address

7.

Place of publication (please give the complete postal address)

8.

Printer's Name

Nationality

1[(a) Whether a citizen of India?

(b) If a foreigner please state the country of origin]

Address

9.

Name(s) of the printing press(es) where printing is conducted and the true and precise description of the premises on which the press(es) is/are installed

10.

Editor's Name

Nationality

1[(a) Whether a citizen of India?

(b) If a foreigner, please state the country of origin]

Address

11.

(a) Size of the page of the newspaper in 2[metres] and its description, e.g., demy, crown, etc.

(b) Average number of pages per week in respect of daily, bi-weekly, tri-weekly and weekly newspapers.

(c) Average number of pages per issue in respect of other newspapers

Apr.

May

June

July

Aug.

Sept.
Oct.
Nov.
Dec.
Jan.
Feb.
Mar.
Total]
12

Number of days of publication in the year

I, hereby declare that the particulars given above are true to the (Name in block letters) best of my knowledge and belief.

Signature of the Publisher

Date

`B'-CIRCULATION

April
May
June
July
Aug.
Sept.

*Half yearly average

Oct.
Nov.
Dec.
Jan.
Feb.
Mar.

*Half yearly average

Total

13. (a) Average number of copies printed per publication day

(b) If the newspaper is not published daily, please state the number of days on which the newspaper was published during a month and the number of copies printed on each of these days.

14. Average number of copies sold per publishing day

15. Average number of copies distributed free per publishing day (including complimentary, voucher, exchange, bonus, sample and office copies).

16. Retail selling price per copy:

(a) If the newspaper is for free distribution, please state that it is "for free distribution".

(b) if it has only an annual sub-scription

*Half-yearly average should be calculated on the basis of the total number of days of publication during the period.

[Publisher's declaration]

[Substituted by G.S.R. 1520, dated 14-12-1960.]

I, (Name in block letters)_____ publisher of _____ do hereby declare that the particulars shown in the statement set forth above are true and correct to the best of my information, knowledge and belief.

Date _____

Signature of publisher _____

*Certificate by Chartered Accountant [***]

[Certain words omitted by G.S.R. 203, dated 20.1.1970.]

We have examined the books and accounts of _____ (Name of paper)_____ for the period ending _____ and have obtained all the information and explanatations required by us. In our opinion the statement set forth above/enclosed reflects true and correct analysis of the sales of the publisher for the period

ending_____ to the best of our information and belief and according to the explanations given to us and as shown by the books of accounts.

Signature_____

(Name in block letters)_____

Chartered Accountant

[***]

[Certain words omitted by G.S.R. 203, dated 20.1.1970.]

Registration No. _____

Date _____

*In respect of newspaper where the average number of copies printed per publishing day does not exceed 2,000, certificate by a chartered accountant or a qualified auditor in the form prescribed above is not necessary. Such certificate is also not necessary in the case of educational institutions, charitable societies or associations which publish newspapers generally for the use of their members and not for sale.

Name

Address

Value of share of capital

Whether related to other shareholders by marriage, blood relationship or otherwise

1

2

3

4

`C'-OWNERSHIP

17.

(a)

Names and addresses of the owners of the newspaper (particulars need be given only of individuals who own the newspaper and partners or shareholders holding more than one per cent. of the capital)

(b)

Also state:

(i) If the owner is a firm - whether it is registered or unregistered, and particulars of partners who own more than one per cent. of the capital

(ii) If the owner is a Joint Stock Company :

Whether a public limited company or a private limited company, and the names and addresses of Chairman and members of the Board of Directors and shareholders holding more than one per cent. of the capital

(iii) If the owner is a Joint Stock Company and is managed by a managing agent - whether the managing agent is an individual, a firm or a Joint Stock Company, and the particulars referred to in part (a) or items (i) and (ii) of part (b), as the case may be

(iv) If the proprietor is a trust, co-operative society, society or association - names and addresses, etc., of Chairman and members of the Trust/Executive, etc.

(v) Any other form of ownership and details about the share of each owner

Note.-(i) All the relevant information should be furnished to disclose effective ownership of the newspaper

(ii) Items not applicable should be scored out

18.

The known bond holders, debenture holders, mortgagees and other security holders owning or holding one per cent., or more of the total amount of bonds, mortgages or other securities

Note.-In case where the stock holder or security holder appears upon the books of the company as trustee or in any other fiduciary relation the name of the person or corporation for whom such trustee is acting should also be furnished.

I, _____, hereby declare that the particulars given above are true to the best of my knowledge and belief.

(Name in block letters)

Date _____

Signature of Publisher _____

FORM III

[See Rule 7(1)]

Register of Newspaper

1. Declaration number under which the newspaper is published

2. Registration number of the newspaper

3. Title of the newspaper

4. Language/Languages in which the newspaper is published

5. (a) Periodicity of the publication of the newspaper

(b)

Day(s)/Date(s) of publication (in the case of publications not published every day)

6. Editor's name

Nationality

(a)

[Whether a citizen of India?

[Inserted by G.S.R. 823, dated 12.3.1969.]

(b)

If a foreigner, please state the country of origin]

Address

7. Printer's name

Nationality

(a)

[Whether a citizen of India?

[Inserted by G.S.R. 823, dated 12.3.1969.]

(b)

If a foreigner, please state the country of origin]

Address

8. Publisher's name

Nationality

(a)

[Whether a citizen of India?]

[Inserted by G.S.R. 823, dated 12.3.1969.]

(b)

If a foreigner, please state the country of origin

Address

9. (a) True and precise account of premises where the printing is conducted

(b)

Place of publication

10. (a) Average number of pages per week in respect of daily, bi-weekly, tri-weekly and weekly newspapers

(b)

Average number of pages per issue in respect of other newspapers

11. Total number of days of publication in the year

1

2

January to June

July to December

12. (a) Average number of copies printed

(b)

Average number of copies sold

(c)

Average number of copies distributed free

13.

Retail selling price per copy

14.

Names and addresses of individuals who own the newspaper and partners or shareholders holding more than one per cent. of the total capital

FORM IV

(See rule 8)

Statement about Ownership and other Particulars about Newspaper (.....) To be Published in the First Issue Every Year After the Last Day of February

1. Place of publication

2. Periodicity of its publication

3. Printer's name

Nationality

(a) Whether a citizen of India?

(b) If a foreigner, please state the country of origin

Address

4. Publisher's name

Nationality

(a) Whether a citizen of India?

(b) If a foreigner, please state the country of origin

Address

5. Editor's name

Nationality

(a) [Whether a citizen of India?

[Inserted by G.S.R. 823, dated 12.3.1969.]

(b) If a foreigner, please state the country of origin

Address

6. Name and addresses of individuals who own the newspaper and partners or shareholder holding more than one per cent. of the total capital.

I, _____, hereby declare that the particulars given above are true to the best of my knowledge and belief.

Date _____

Signature of Publisher _____

FORM V

(See rule 10)

Certificate of Registration

The Registration Of Newspapers (Central) Rules, 1956

Office of the Registrar of Newspapers for India

This is to certify that the newspaper entitled _____ has been registered under the Press and Registration of Books Act, 1867.

1. Title of the newspaper

2. Registration number of the newspaper

3. Language/Languages in which it is published

4. Periodicity of its publication and the day/days/dates on which it is published

5. Retail price of the newspaper

6. Publisher's name

Nationality

(a) [Whether a citizen of India?]

[Inserted by G.S.R. 823, Dated 12.3.1969.]

(b) If a foreigner, please state the country of origin

Address

7. Printer's name

Nationality

(a) [Whether a citizen of India?]

[Inserted by G.S.R. 823, Dated 12.3.1969.]

(b) If a foreigner, please state the country of origin

Address

8. Editor's name

Nationality

(a) [Whether a citizen of India?]

[Inserted by G.S.R. 823, Dated 12.3.1969.]

(b) If a foreigner, please state the country of origin

Address

9. True and precise account of the premises where the printing is conducted

10. Place of publication

Dated.....

Registrar of Newspapers for India

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